

Priya Tiwari v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 19 July 2013 · Writ-C No. 38806 of 2013 · **Writ disposed; application with landlord NOC to be considered in accordance with law**

HEADNOTE

A tenant's writ for an electricity connection without the landlord's no-objection certificate is not granted. Under the Electricity Supply Code, 2005 a tenant may apply in his own name only after that certificate is given. If a valid application duly accompanied by the landlord's NOC is filed, the distribution corporation shall consider and decide it in accordance with law.

FACTUAL SUMMARY

Priya Tiwari claimed to be a tenant of respondent Pushpa Tyagi under an eleven-month tenancy agreement and applied to the distribution corporation for an electricity connection in the tenant's name. The corporation did not accept the application. In the writ, counsel for the corporation stated that under the Electricity Supply Code, 2005 a tenant may apply for a connection only after the landlord issues a no-objection certificate, which the petitioner had not filed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant connection — landlord NOC

HOLDING

Without a landlord no-objection certificate, a tenant's writ for an electricity connection is not granted. Under the Electricity Supply Code, 2005 a tenant may apply in his own name only after the landlord's NOC. A valid application accompanied by that certificate shall be considered and decided by the distribution corporation in accordance with law. ¶ 1

PRINCIPLE TAGS

owner-consent-mandatory-for-new-connection-clause-4.4 A tenant's writ for an electricity connection without the landlord's no-objection certificate is not granted. Under the Electricity Supply Code, 2005 a tenant may apply in his own name only after that certificate is given.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF A CONNECTION APPLICATION ACCOMPANIED BY LANDLORD NOC

Left to the Corporation to consider and decide in accordance with law if such an application is filed. ¶ 1